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AMERICAN JEWISH CONGRESS

MORALIZATION AND DEMORALIZATION IN JEWISH ETHICS

LEON ROTH

TO EXPLAIN MY TITLE, I offer two illustrations. The first is well-known, and I adduce it only because its significance is often overlooked.

The Mishnah in Sanhedrin recounts the way in which the old Jewish court tried to bring home to witnesses in a capital case the uniqueness of human life and the consequent responsibility of their position. The court would have them brought in, we read, and would admonish them as follows:

You are not to speak from guesswork or from gossip or from reliance on a third party however trustworthy in your eyes. You must understand that cases involving the death penalty are not like those which involve only money. In money cases a false witness can atone for the damage he has caused by a money payment. In capital cases there rests on his

head the blood of the condemned man and the blood of the descendants [who may have yet to be born to him] to the end of days.

The Mishnah then goes on:

It is for this that man was created one, to instruct us that whoever destroys one life, it is accounted to him by Scripture as if he had destroyed a whole world, and whoever preserves one life, it is accounted to him by Scripture as if he had preserved a whole world.

As it stands thus, this statement is completely general. The original creation was of one man, and from that one man came the life of all human beings. To preserve one life is thus to preserve a whole world of humanity: to destroy one life is to destroy a whole world. This is obviously the sense meant, and this is obviously the proper text; and so we find it—I am quoting the late Professor J. N. Epstein—in all exact manuscripts and early references. Our printed texts however insert the word *me-Yisrael*, and therefore read not “whoever preserves or destroys one life,” but “whoever preserves or destroys one Jew.” The addition of the word *me-Yisrael* produces a sudden, and ludicrous, deflation.

A similar point may be noted in our text of a verse (21) in the last chapter of Isaiah. According to the Septuagint and most modern translations, and with explicit emphasis in the Targum, the verse says that “some of the Gentiles also will

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I take for Priests and for Levites, saith the Lord."¹ This could be expressed, however, by *le-Kohanim*, with a *Sheva* under the *Lamed*, not, as in the Masoretic text, *la-Kohanim*, with a *Patach*. Now this *Patach*, which belongs of course to the sphere not of text but of exegesis (the independent vowel-system in our text of the Hebrew Bible being, as is well-known, of late date), allows a different translation altogether, not "for priests" but (as in the American Jewish Publication Society version of 1917) "for the priests," that is, for the already existing priests. The persons referred to are not to be priests themselves; they are to be "for," that is, for the use of, the priests already there. Like the Gibeonites of old,² they are to do the menial jobs.

I am not decrying this kind of service: "He also serves who only stands and waits." I am only pointing out the nature of the change of meaning which is made possible by the choice of vowel. Instead of what at first sight looks like the widest throwing open, to "all nations and tongues," of the presumed privilege of being priests on the holy mountain, we have, or we seem to have, only the admission of the non-Jew to the offices of hewers of wood and drawers of water. When the repentant Gentile comes to the restored Temple with the assured expectation of being offered, and performing, honorable office, he runs the risk of being told that he has not read the text accurately. The text has a *Patach* and not a *Sheva*, and therefore his place is (as it were) not in the drawing-room but the kitchen.

¹ The significant references to understand the peculiar interpretation offered by the Jewish commentators are *Midrash Shohar Tob* on Psalm 87; *Yalkut* 207 end.

² So Joseph Kimchi, as quoted by his son.

II

THESE INSTANCES of "deflation," or even "debasement," in Jewish Ethics will suffice to explain and illustrate my title. They also reveal its insufficiency. For it is obvious that what they teach us is not so much that such instances exist in Jewish Ethics as that we seem to have no Jewish Ethics to tell us how we may recognize them. The insertion of the word *me-Yisrael* in the Mishnah passage, or the reading the verse from Isaiah with a *Patach*, represents a change in moral conception, yet I do not notice it remarked on as such by our commentators; and this suggests the reflection that having noticed it, they think it of no significance. This would seem to be a monstrous situation. The fact that the latest editor of the Mishnah can allow the printed text to remain with the word *me-Yisrael* in, and only in his *second* set of additional Notes and Afterthoughts to remark that its omission would be superior, makes one think that our greatest scholars, so sensitive to the minutest points of history and philology, are singularly insensitive to points of moral concern.

Yet these instances cut very deep. Each pair of readings involves a contrary moral attitude; and it is imperative for us, in the normal workings of our lives, to receive guidance between them. Is the view of Judaism on the subject of the place of the non-Jew in the restored Jerusalem that indicated by the Masorah and the American Jewish version; or can we follow the Septuagint and, most explicitly, the Targum, and read our text with a *Sheva* and not a *Patach*? Is the view of Judaism on the subject of the sacredness of life that indicated by the

printed text of our Mishnah,³ i.e., apparently, that only Jews count; or can we, with the manuscripts and early authorities and Professor Albeck's second Afterthoughts, omit the word *me-Yisrael*? These are important issues, and we need to know which of the contrary views we are to account as Judaism.

III

IT IS THE CONSIDERATION of this sort of problem which is the province of the science of Ethics; and in the light of the instances I have given it will not be unfair to say that Jewish Ethics, or more properly an Ethics of Judaism, does not exist.⁴ I am not saying that Jewish *morality* does not exist, or that Judaism has no *morals*. It is Jewish *Ethics*, or more properly, as I have said, an Ethics of Judaism, which does not exist. Ethics is the *theory* of morals. It is the reflective enquiry into the *nature* of morals.

³ See the note of Edels (the Maharshah, 1555-1631), in the Romm (Vilna) edition of the Talmud, Sanhedrin, Appendix, p. 10a, col. 2, l. 4 ff., mercifully omitted in the excerpts given in the current editions of the *Eyn Yaakov*.

⁴ I regretfully hold to this opinion in spite of the great and justly honored names of Hermann Cohen and Moritz Lazarus (of which the managing editor of JUDAISM has reminded me). Both of these were too immersed in Kant, and Kantian modes of thought and expression, to be able to do independent justice to our subject. This does not mean that the study of their writings is unprofitable. Very much to the contrary. They are often richly suggestive, as are, too, the essays of Ahad Ha-am, Klausner, Neumark, Shai Ish Hurwitz, and many another writing in Hebrew; and there is much to be learned from books like the posthumous *Be-Malchut Ha-Yahadut* of the late Rabbi Abraham Chen. But no one of these offers the reasoned account of the values of Judaism which our subject calls for. For the same reason the *Mussar* literature, both medieval and modern, is inadequate. It does not contain a coherent set of ideas knit together by thought-out principles.

It is the reasoned attempt to see, or (possibly) to introduce, order and principle in moral ideas. An Ethics of Judaism would be the theory of the morals of Judaism, the attempt to see, or (possibly) to introduce, order and principle in the moral ideas of Judaism. Thus we need two things: the first, a plain statement of the moral ideas of Judaism; the second, the bringing of them together into one intelligible and coherent view. The order of enquiry is important: the statement first, the theory second. So many attempts at an Ethics of Judaism have failed because of the mistaken assumption that Ethics is a deductive science and that (ideally at least) moral ideas can be excogitated from the blue.

I say that the creation of an Ethics of Judaism is an urgent need, but I do not mean that it can be produced by authority. Even the smaller points of morals cannot be determined in this way. It is of no use convening a Rabbinical Synod in order to change that *Patach* into a *Sheva*, or to decide that the next official edition of the Mishnah should print the original and not the falsified text. Moral attitudes cannot be changed by acts of Synods. I am pleading for something else. I am begging our wise men to turn their attention towards the erection of a coherent set of ideas about the values of Judaism; and by a coherent set of ideas I mean a reasoned account, not a series of oracular pronouncements. It is a *reasoned account of the values of Judaism* which constitutes what I have called an Ethics of Judaism. It may necessitate some hard words and severe wrenches. Not everything printed in Hebrew, not even everything printed in some editions of our Prayerbooks, is Judaism; and I recall to the reader's attention the fact that Maimonides, giving his

reasons, felt compelled to dismiss an early Kabbalistic classic as sheer idolatry, to be not wondered at as a sublime mystery but, simply, destroyed.

IV

WE ARE SOMETIMES TOLD that the interest in theory, the seeking after principles, the desire for order and coherence, is a heresy of the Greeks, and alien to Judaism. I do not find this so. On the contrary, I find traces in the oldest tradition of just that of which we are in search. Indeed, what I am going to suggest is that questions of principle and, in particular, questions concerning the *principles of morals*, that is, questions of *Ethics*, occupied the minds of the creators and upholders of historical Judaism much as they do ours, and in much the same fashion.

I offer a preliminary and simple example:

There is an elementary distinction, basic to all discussions about morals, between the two uses of the word "can." Let me turn to the Greeks. Socrates, after his condemnation at the hands of the court, is told by his friends that he can walk out of prison: arrangements have been made and the jailer will look the other way. Socrates retorts: "I can; but *can* I?" *Physically*, of course he can. He can flex the muscles of his legs and walk out. But "*can*" he *morally*? *Ought* he? Is it not perhaps his duty as a citizen to obey the law and to stay? Just as in the one sense, the physical sense, he *can*, so in the other, the *moral* sense, he *can not*.

We find this ambiguity of the word "can" in the Hebrew of the Pentateuch itself. We are told that if we see our neighbor's animal astray in the fields, we *can not* shut our eyes. But *can* we not? Of course we can—in one sense. A

famous cartoon in *Punch* once showed a cross-Channel passenger in the middle of a rough passage taking refuge in a freshly carpeted private cabin. A steward comes up to him and says: "But, sir, you can't be sick here." To which he retorts: "O, *can't* I?"—and *is*. Of course we can keep our eyes shut. There is nothing easier—physically. But *morally*? *Ought* we? Perhaps, after all, morally, we *can not*.

This distinction was noticed specifically in Rabbinic literature. We read in Deuteronomy 12:7: "Thou canst not eat in thy gates." Canst not? Of course we can; we can eat anywhere. But as Rabbi Joshua b. Korchah remarks explicitly: "*Yachol ani aval ain ani rashai*" ("I can, but I am not *allowed*"); and he quotes in support Joshua 15:63, where the children of Judah "could not" drive the Jebusites out. Could not? Of course they could—*physically*; but *morally* they could not because of their oath, and therefore "*yecholim hayyu aval ainom rashaim*."

The distinction is simple but fundamental. It is that between the "is" and the "ought." But the important thing to observe is that the distinction was not only recognized in our literature. It had its special terminology assigned to it—in our instance, the physical *yachol* is distinguished from the moral *rashai*; and this suggests that it was discussed, which means that people had developed a sense not only for moral fact but for ethical theory.

V

WE ARE USED to the idea of discussion in matters of Halachah; and we are used to the pronouncements of the Aggadists, both among themselves and in controversy with non-Jews, on matters of morals and religion. But these latter are as a rule pronouncements, dicta, sup-

ported by verses, not by argument. This is the rule, but there are exceptions; and these exceptions would seem to testify to the existence of regular argument, that is, of rational reflection, on these matters. The theological argumentation with the neighboring idolaters is well-known and is certainly based on a reasoned review of the issues discussed, however meagerly the theoretical basis survives in the short reports preserved in the existing literature. But let us consider the implications of the no less well-known *internal* confrontation of some of the great 1st- and 2nd-century Rabbis.

I take a famous, but to my mind imperfectly understood, instance both for its intrinsic importance and because it illustrates further my plea that our printers and scholars pay insufficient attention to the moral significance of our classical literature.

I start with the conventional text of the well-known passage of the Sifra on Leviticus 19:18:

Rabbi Akiba said: "'And thou shalt love thy neighbor as thyself'—this is a great principle in the Law." Ben Azzai said: "'This is the book of the generations of man'—this is a greater principle than that."

On the face of it we have here a confrontation not of reasoned arguments but of Biblical verses, the verses being arbitrarily chosen and set one against the other. Akiba gives us no reason for his choice of verse; and Ben Azzai gives no reason for his assertion that his verse embodies a greater principle than Akiba's. We are not even told in what sense one principle is "greater" than the other, or for that matter what a "principle" (*k'lal*) is. So far as this report is concerned we may make any guess we like. The accepted explanation of Ben Azzai's statement that his verse embodies a greater principle than Akiba's is that

Akiba's verse speaks only of neighbor, Ben Azzai's of man in general; and if we happen ourselves to think that concern with all men is superior to concern with the man next door (though obviously Akiba did not mean that restriction at all), we approve Ben Azzai and accept his valuation.

But this, as I say, is guesswork. For reasoned argument we need *reasons*, a considered statement in the light of a comprehensive principle; and this fortunately is preserved for us, although in a mutilated form, in the Midrash of Ben Azzai's verse *in situ*.

I translate the conventional text:

Ben Azzai said: "'This is the book of the generations of man'—this is a great principle in the Law." Rabbi Akiba said: "'And thou shalt love thy neighbor as thyself'—this is a great principle in the Law. For thou shouldst not say: 'Seeing that I have been treated contemptuously, let my fellow be treated contemptuously with me; seeing that I have been cursed, let my fellow be cursed with me.'" Rabbi Tanhumah said: "If thou actest thus, know who it is thou dost contemn. 'In the likeness of God he made him.'"

THE KEY to the understanding of this passage as a whole is to be found in an acute remark of the brilliant (and concise) 17th-century commentator on the Midrash, the Mathnoth Kehunah, who saw that an "etc." (*ve-gomer*) had dropped out of our conventional text, and in order to understand Ben Azzai's point we have to see the whole of the verse he quotes, and not its first words only. In its entirety it reads: "This is the book of the generations of man (or Adam): when God created man (or Adam), it is in the likeness of God that he made him." If this remark of the Mathnoth Kehunah is accepted (as it clearly must be; incidentally, the addition of such an "etc." to many other difficult passages would help solve many mysteries), all

we have to do is to see that the words "for thou shouldst not say" belong to Ben Azzai and not to Akiba. The whole passage then becomes:

Rabbi Akiba said: " 'And thou shalt love thy neighbor as thyself'—this is a great principle in the Law." Ben Azzai said: "The verse 'This is the book of the generations of man; in the day that God created man, in the likeness of God made he him' is a greater principle. It teaches us that we must not say [as we might if we only loved our neighbor as ourselves]: 'Since I have been condemned, let my fellow too be condemned just as I was; since I have been cursed, let my fellow too be cursed just as I was.'"

Rabbi Tanhumah [a later teacher] explained: "If you do that, know who it is whom you condemn—you condemn God in whose likeness man was made."

(In order to anticipate any objection that this a "subjective" and doubtful reconstruction of my own, I point out in passing that I am quoting the *ipsissima verba* of the Rabad, not however the philosopher of that appellation but the 12th-century French Talmudist, anti-Maimunist and Kabbalist, in his commentary on the Sifra, a commentary first published by I. H. Weiss in 1862, that is, a couple of centuries or so *after* the death of the Mathnoth Kehunah. See too Theodor's note in his edition of the Bereshith Rabbah.⁵)

THESE TEXTUAL CONSIDERATIONS are trying, but they are important, for they demonstrate again the insensitivity of our scholars to questions of morals: two recent so-called "critical" editions of the Midrash Rabbah on Genesis reprint without comment the conventional text! But apart from this regrettable fact, one should note the genuine importance of our results. We have uncovered in our classical literature a regular argument on

a point of morals conducted on rational lines. Ben Azzai does not just produce a verse and make an *ex cathedra* statement about it. He gives a sound reason for his assertion that his principle is greater than Akiba's. If Akiba's principle is to be the determining principle in morals, moral action (Ben Azzai argues) would disappear. It would result in passive acquiescence in the face of wrong. A person who had himself suffered would shrug his shoulders at the suffering of others. He would say, and on Akiba's principles say rightly: "What then? I have been treated badly. Why should not others be treated badly too?" It is to this that Ben Azzai objects. He says: "Each and every man *in himself* has his dignity. He bears within him the likeness of God. And *therefore*, even though we may have been treated badly ourselves, we should strive that others should be treated properly."

Ben Azzai is thus more than an empty universalist. He is not only extending the boundaries of moral concern from neighbor to man. He is repudiating the view expressed in that most abominable of modern phrases: "It's one of those things," or "It's the same everywhere." For Ben Azzai the moral claim is independent of our personal situation, or the human situation as such, *because* it derives from the *self-transcendent* character of man.

But what of Akiba? I think he accepted Ben Azzai's argument. We know that he was big enough to change his mind on points of Halachah. I suggest that he changed his mind on this point of morals too. Recall the great saying preserved in that book of great sayings, the *Pirkei Aboth*: "Beloved is man in that he was created in the likeness, and even greater love was shown him in making him conscious of the fact that

⁵ [Cf. also Hermann Cohen, *Religion der Vernunft*, p. 137 ff.—Ed.]

he was created in the likeness." We have no mention here of fellow-Jew (this comes in his next sentence) or even neighbor, but *man*, and man (in accordance with Ben Azzai's principle) as "created in the likeness." We would seem thus to have unearthed in the literature not only a reasoned argument on morals between our early teachers but that most unusual of all things, an argument in which one of the disputants was convinced by the other and changed his views accordingly.

VI

THE VALUE of such a principle as Ben Azzai's, a principle not just asserted but supported by reasoning and tested in discussion, is that it offers a standard. It gives a criterion by which we can determine the comparative quality of our actions. We now know, for example, that to sit passive in the face of wrong, a wrong which we may indeed have suffered ourselves but which is for all that wrong, is to deny morality. We dare not say: "Oh, it is just one of those things." Things have nothing to do with persons, and each man is a person, created in the likeness. It is respect for the likeness, not love of neighbor which is only an instance of it and possibly in some cases a misleading or at least misguided instance of it, which in Ben Azzai's view (and in Akiba's later view) is the spring and criterion of morality. Actions which proceed from it are therefore moral actions and right; actions which deny it or contradict it, immoral and wrong. I have no doubt at all what Ben Azzai would have thought of that *Patach* in the verse from Isaiah or the insertion of that word *me-Yisrael* in the text from the Mishnah with which I started; but my point is that he would have judged, as he would in my view undoubtedly have judged,

not from whim or emotion but from a clearly articulated first principle, that is, rationally.

A principle, clearly articulated and firmly grasped, enables us not only to judge. It enables us to correct and improve. It enables us, out of the multifarious material accumulated by time, to select. I have pointed out elsewhere⁶ that the great service to Judaism performed by Maimonides was to show us how to master the indiscriminate mass of Aggadah, the great *disservice* of the Kabbalists and their modern followers to attempt to subject us to it again. Basically, the problem is that of the *translation of Aggadah into Halachah*; but whereas much attention has been given by our scholars to the rules of hermeneutics by which new guidance was found in (or extracted from) reluctant, or recalcitrant, texts in the sphere of Halachah, little, if any, has been paid, apart from the work of Heinemann, to the similar activity engaged in the sphere of Aggadah. Yet I think it can be shown that part of the conscious energy of the Talmudic Rabbis was devoted to increasing and developing the higher elements in Jewish morality, and depressing or obliterating the lower.

We have here a most inviting field of research for our sociologists, and I welcome with all my heart and all possible encouragement such studies as Professor Jacob Katz's recent *Exclusiveness and Tolerance* (Oxford University Press, 1961). This book opens up almost unlimited fields of enquiry into these important matters and conceptions, and it is particularly valuable in that it treats of them from the point of view of history and of the Halachah. Since we are

⁶ In my book on Maimonides (*The Guide for the Perplexed*, Moses Maimonides, Hutchinson's University Library, London 1948).

dealing now with the problem of an *Ethics* of Judaism, our concern is with Aggadah, in the sense of the preliminary molding of men's minds to accept ideas which produce finally the concrete practical ruling which is Halachah; and it is sufficient for this purpose to note the existence of the process of what may broadly be called *moralization*.

The meaning of this word will appear from definite examples. Its need is only emphasized by the often violent methods adopted in order to effect it. The Rabbis' hands were tied. They were bound to an inviolable text. But they limited, extended, broadened, narrowed, ignored, blandly changed, even in some striking cases perverted, the plain sense, in order to achieve their aim. They knew that philology is a good servant. They knew even better that it is a bad master; and they had grasped the truth that the determining factor in all exegesis is the whole context and not the isolated word or sentence or even paragraph.

By a "whole context" I mean here something wider than Professor Barr's, in his recent admirable *Semantics of Biblical Language* (O. U. P., 1961), or in my own Montefiore Memorial Lecture (*Some Reflections on the Interpretation of Scripture*, 1955) of some years ago. I mean a general framework of interpretation, consciously adopted and consistently carried through. For example, the Prayerbook speaks of God as having given the Jewish people, "in the light of His countenance," *Torath hayyim ve-ahavath hessed u-tzedakah u-berachah ve-rahamim ve-hayyim ve-shalom*, i.e., a Law of life and a love of kindness, and righteousness and blessing and pity and life and peace. True, the early text of Saadia, which is pretty much that of Maimonides and (with minor

variants) of the Spanish and Italian rites in general, reads: *Torah ve-hayyim, ahavah va-hessed*, i.e., Law and life, love and kindness, etc. But verbal minutiae apart, the collocation of terms, each one of which, and in some cases the pairs of words together, can be documented by countless references both in Holy Writ and in the Rabbinical writings—the collocation of words itself expresses succinctly a complete framework of ideas or what I call a "whole context."

For traditional Jewry the Torah—that is, please remember, *Judaism*—was essentially and primarily a doctrine of life and love and kindness and fair-dealing and pity. It is no use anybody saying anything to the contrary, be he anthropologist or theologian or moral philosopher or mythologist. For Jewry the Law, the Torah, is a law of life and kindness and love and decency and pity. This being the guiding principle, whatever appears contrary to it must be explained away.

And it *was* explained away. For example, in the case of a whole city going idolatrous we read (Deuteronomy 13): "And ye shall gather all its spoil into the midst of its open square, and burn the city and all its spoil with fire." Its open square? Here is an opportunity for modifying the judgment, and we are told: "If it has not got a square, you do not do this." True, the contrary opinion is also expressed that if the city has no square, you should make one and carry the sentence out; but the point is that openings for moralization were sought for. The guiding principle was encouraged to squeeze out the narrower views.

THIS PARTICULAR CASE would be an instance of conscious limitation, and we have the natural consequence in the dictum: "The case of a condemned city

never occurred nor ever will occur." In the same way the problem of the savage treatment of the "seven nations" is met by the observation that they have long disappeared and therefore the regulations affecting them are of antiquarian interest only; though even so we are told, on the legal principle that there is no punishment without previous warning, both that, unless proper warning had been issued, the sentence did not hold and that, if the inhabitants changed their ways, no sentence was imposed at all.

The audacity, both philological and historical, by which the process of moralization was effected shows vividly the intense feeling with which a way out was sought. I love that Mishnah which relates how an Ammonite, against the express prohibition of the Pentateuch and the explicit opposition of the official Patriarchate, was admitted into the congregation. The ground was that there were no longer any Ammonites (or indeed any other "pure" races) in existence because Nebuchadnezzar, with his policy of transferring populations, mixed us all up! But in the same way as the early authorities could on occasion get around the obvious sense of the Pentateuch,⁷ so later authorities could on occasion change the clear ruling of the Mishnah. Maimonides, for example, against the explicit ruling of the Mishnah, directed a convert to Judaism to use the full text of the Prayerbook blessings and say "the God of our fathers," and "Who brought us out of the

land of Egypt," etc.; and his ruling is so important in its general attitude, and so helpful for our needs of today, that it is worth recalling and pondering. I draw particular attention to its calm conviction and its serene good sense:

Thou hast asked about the blessings and the prayers, and whether thou shouldst say "Our God and the God of our fathers" and "Who sanctified us with his commandments" and so on.

Thou shouldst use them all and change nothing but shouldst pray as any born Jew, whether thou prayest in private or whether thou ledest the congregation in prayer.

The root of the matter is that Abraham our father taught the whole people and made them acquainted with the religion of truth and the uniqueness of God, and spurned idolatry and destroyed its worship and brought many under the wings of the Divine Presence. . . . Therefore any stranger who joins us till the end of time, and everyone who recognizes the unity of God as taught in Scripture, is a disciple of Abraham our father; and they are all of them members of his household, and he it is who brought them to the right path.

And therefore thou art to say "Our God and the God of our fathers," because Abraham is thy father; . . . there is no difference between us and thee in any thing. Thou mayest certainly say in thy prayers "Who has chosen us," "Who has given us the Law," and "Who has caused us to inherit" and "Who has separated us," because God hath indeed chosen thee and separated thee from the peoples and given thee the Law; for the Law is given alike to us and to the stranger, as it is written: "One law and one judgment is there for ye and for the stranger who sojourneth with thee."

Know this: Our fathers who went up from Egypt were, in Egypt, idolaters for the most part; they had mixed with the nations and learned of their ways; until God sent Moses our teacher and brought them under the wings of the Divine Presence, us and the strangers together, and gave us all one statute.

Let not then thy descent be light in thine eyes. If our descent is from Abraham, Isaac and Jacob, thy descent is from God himself.

⁷ It will be remembered that an Ammonite woman was in any case "admitted into the congregation" on the ground that the prohibiting text says "Ammonite" in the masculine.

VII

MAIMONIDES'S RULING on the subject of the proselyte is not an instance of limitation but of broadening. The term "Jew" is widened to include people who would naturally be considered to be excluded; and it has a curious parallel in the United States of today where one can still hear immigrants, and sons of immigrants, sing lustily: "Land where our fathers died." The point is that in the case of Maimonides the position taken is a reasoned one and based on the fundamental, and deeply felt, theological position that Jews are definable as members of the household of Abraham which is the household of God. The proselyte is therefore even nearer to God than the born Jew because he is a member of God's household by original conviction like Abraham himself, not merely by the fact of birth.

I take now a more subtle instance affecting primarily theology, but (as always in Judaism) theology, as we shall see especially later, involves morality.

We pray: "O God the great, the powerful, and the awesome," and according to the Talmud even these epithets would not have been allowed but for the fact that they are recorded as having been used of God by Moses. But what do they mean? As the Aggadists themselves asked: "Where now is His greatness; where now His awesome deeds?" On the face of it, "greatness" means presumably "power," *physical* power; but is the greatness of God just that of a super-scientist or super-politician, that of the hundred-times-a-hundred megaton bomb? The Rabbis say flatly, No! Deuteronomy 3:24 reads: "O Lord God, Thou hast begun to show Thy servant Thy greatness and Thy Mighty hand"; and the Sifré (Pinhas §134) says:

Thy greatness: this means Thy goodness, as in the verse (Num. 14:17): "And now I pray Thee let the power of the Lord be great."

Thy hand: this means the hand which is stretched out [i.e., in mercy and pardon] to all those who come into the world.

Thy might: this refers to the might Thou showest when Thou dost in mercy repress the attribute of justice; as it is written, "Who is a God like unto Thee, forgiving sin and passing over transgression."

The point of interest is the complete moralization of the idea of power. Power has been transmuted from the physical to the moral; and that this is not a casual eccentricity but a purposeful and deliberate change is clear from the note of the same Sifré on the verse of Deuteronomy *in situ* (§27 with Friedmann's note 11, p. 71): "This is the universal meaning of the word 'greatness' when applied to God."

That the greatness of God lies in His goodness and His power to forgive, that is, in the words of the Sifré we have referred to, in His control of justice by pity, is one of the commonplaces of traditional Judaism, and it is thrust home in the Prayerbook by one of the most striking instances of moralization which any purposeful exegesis could offer. In the list of the "thirteen attributes" of God repeatedly appealed to in the liturgy of the New Year and Day of Atonement the last is *ve-nakeh*, "and acquitting," that is, "and acquitting the guilty." But this, of course, is the very opposite of the original text which reads: *ve-nakeh lo yenakeh*, that is, "and *not* acquitting the guilty." It would be difficult to find a more blatant, and more instructive, instance of conscious moralization.

From the point of view of the science of Ethics, as distinguished from, and as giving strength and confirmation to, the

code of morals, the point of interest is the way in which the supreme principle—let us call it summarily *Torath hayyim ve-ahavath hessed*: Judaism as a doctrine of life and love of kindness—is followed consistently throughout and creates an integral pattern. Moralization in this specific direction, explicit and conscious, was going on all the time in the expansion and development of the tradition. Indeed, I should say myself that the moralization *constituted* the expansion and development of the tradition.

VIII

WE CAN DESCRIBE, I think, some of the main lines of the emerging pattern: in the warp, the increasing warmth and confidence of the universalism; in the woof, the recession of justice before pity (not, of course, that these are new elements but that they are seen to cohere more with the old and give them support and consistence). But these are delicate matters, and concern the future science of Ethics. On the practical side, within the sphere of living morality, it is sufficient to indicate the deliberate attempt on the part of the Talmudic Rabbis, under the guise of Biblical exegesis, to promote the emergence of a new type of man. The instance I am to give is remarkable because of its very absurdity, absurdity, that is, as exegesis. In intention it is so far from being absurd as to raise vividly the most modern of all issues.

In II Samuel 23 we are given an account of David's "mighty men" and their deeds of valor. Benaiah the son of Jehoiadah, the son of a valiant man of Kabzeel who had done mighty deeds, slew the two "Ariel of Moab," and slew a lion in the midst of a pit in time of snow; on which we have the comment in Babli Berachoth:

A valiant man—this means that he increased and assembled workers for the Law;

He smote the two Ariel of Moab—this means that he left no one like him [i.e., for scholarship] whether in the First or the Second Temple;

He slew a lion—that is, he learned the Sifra of the school of Rav.

You will agree that the comment is astounding. As exegesis it is nonsense. But for that very reason it merits special attention. After all, the author of the comment, and its recorders and preservers, were presumably as intelligent as we are, and they would not have wasted time and space for a foolish remark if indeed it were just foolish. But it is far from that. In its sphere it gives expression to exactly the same idea (and here is this unity of pattern so interesting and important for Ethics) as the theological statement to which I referred earlier. God's greatness, we were told then, does not lie in the exercise of physical power. His mighty hand is mighty because it exercises the moral virtue of pity. Here we have the parallel for man. Man's greatness, too, does not lie in physical power. Soldiers are not the ideal man. Generals are not the ideal man. Even athletes are not the ideal man. It is the moral qualities which count and which constitute man's power. It is those who "although themselves treated with arrogance, do not treat others with arrogance, who bear humiliation but do not humiliate others, who fulfill God's will in love and put up with adversity" whom "Scripture calls the lovers of God and whom it declares to be like the sun when it goes forth *in its power* (*gevuratho!*)."

It is usually said that the Talmudists, or some of them, were so afraid of the civil authorities that they allegorized away all mention of military acts. Indeed, we are often told that the suppression,

or apparent suppression, of the military achievements of the Maccabees in our editions of the classical Rabbinic literature—as is well-known, Hanukah is mentioned only sparingly and in connection with the miracle of the oil—was due to fear of the police, whether the Roman or the Parthian or the Arab, or, later, of the censors of Christian Europe. *I wonder*; and in spite of the modern school of Jewish history represented prominently by the late Gedaliah Allon, I even doubt whether it was true of the historical Pharisees themselves. If, as a principle of universal application, *God's* power is to be equated with His goodness, perhaps, in the Rabbinic mind and as a principle of equally universal application, *man's power also* is to be equated with his goodness. Perhaps they thought sincerely, apart altogether from the fear of the policeman and other considerations of the higher diplomacy, that there are virtues superior to the military. They made great use of the doctrine of the Imitation of God and constantly urge us to follow God in His moral attributes: "As He is merciful, be thou merciful." I am not aware of any passage in which we are urged to follow God in His *military* capacity.

If this contention is sound, we seem to have one instance of a society where the soldier was not held up to admiration as the highest type of man; as indeed, in Rabbinic idea, he was not (the supreme type was the student of the "Law of life and the love of kindness").

BUT HERE INDEED the question which I raised earlier becomes insistent: which is the higher type and which is the lower? The studious life of scholarship and learning; the practical life of kindness and pity; the religious pursuit of holiness ever beckoning us on and

ever far away; or the life of the soldier with its Roman ideal of *parcere subjectis et debellare superbos* ("sparing those who are at your feet and destroying by war those who are not")? A recent speaker on the British Broadcasting Corporation, a schoolmaster, observed that a principal cause of war in our societies is the idealization of the military life and the submission of the Churches to the military ideal. Perhaps the Rabbis of the Talmud also noticed something of this kind and tried to turn men's minds away, not from the *fact* of war—that, alas, would be impossible—but from the regarding of war, and of the warrior, as an ideal. As they said of the tanner and the perfumer: "Both are required, but better be a perfumer." It may be that soldiers, like tanners, are necessary; but that is no reason for our considering them, *pace* Ruskin, as the highest type of human being. "Forgive Thy people Israel whom Thou hast redeemed," says the Deuteronomist, "and suffer not innocent blood to remain in the midst of Thy people"; and the Sifré comments: "It was for this Thou didst redeem us, that there should not be among us men who spill blood."

But (again!) which is the highest type of human being; which, in the scale of virtues, is the high and which the low? And what constitutes their high-ness and low-ness? Wherein does it lie and how do we recognize it? By reason of what can we say that any one kind of activity is *better* than another, "better," that is, not in any utilitarian or pleasurable sense, but *morally*? Aristotle says somewhere that if there is a better, there is a best. I rather fancy that Judaism would say that, since there is a Best, there is a better. But I am beginning to approach my subject and shall therefore, after the fashion of the learned, stop.